

Union Territories (Laws) Act, 1950

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Union Territories (Laws) Act, 1950

UNION OF INDIA

India

Union Territories (Laws) Act, 1950

Act 30 of 1950

Published on 15 April 1950

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Union Territories (Laws) Act, 1950

(Act

No. 30 of 1950

)

Last Updated 20th July, 2019

Statement of Objects and Reasons. - Out of the ten States specified in Part C of the First Schedule to the Constitution, only three, namely, Ajmer, Coorg and Delhi, have been provided easy means of legislation to meet local requirements. Article 242 of the Constitution enables the Coorg Legislative Council to enact measures for that State, while the Ajmer-Merwara (Extension of Laws) Act, 1947, and section 7 of the Delhi Laws Act, 1912, empower the Central Government to extend to Ajmer and Delhi, respectively, any enactment which is in force in any Part A State or any other Part C State. This latter power has been frequently availed of in the past for extending to Delhi and Ajmer Provincial

Acts, with modifications to suit local conditions, thereby saving very considerable expenditure of time and labour in the Central Legislature. It is proposed that the same power should be conferred on the Central Government in relation to the other seven Part C States.

The Merged State (Laws) Act, 1949, which came into force on 1st January, 1950, inter alia provided for the extension of all the more important Central Acts and Ordinance to four of the new Chief Commissioners' Provinces (now "Part C State") namely, Bhopal, Bilaspur, Himachal Pradesh and Kutch. Three more Chief Commissioners' Provinces, namely, Manipur, Tripura and Vindhya Pradesh, subsequently came into existence on the 23rd January, 1950 by virtue of the States Merger (Chief Commissioners' Provinces) Order, 1950. It is necessary to extend the abovementioned Central Acts and Ordinances proprio vigore to these three Part C States, instead of relying on the corresponding law, if any, which may have been in force in corresponding Indian State at the time it was taken over by the Central Government or may subsequently have applied by order the Extra-Provincial Jurisdiction Act.

As regards Manipur which has large tribal areas, it is considered that the Civil and Criminal Procedure Code and certain other Acts should not be brought into force immediately in the whole State, but should be applied later on with modification for which power would be available under clause 2 of this Bill. The Indian Penal Code has also to be slightly modified in its application to the State in view of certain peculiar marriage customs prevailing there.

The Bill is designed to give effect to the above proposals.

[Dated 15.4.1950.]

An Act to provide for the extension of laws to certain [Union territories.]

[Substituted by the Adaptation of Laws (No. 2) Order, 1956, for 'Part C States'.]

Be it enacted by Parliament as follows: -

1.

Short title and commencement.

(1)

This Act may be called the [Union Territories]

[Substituted by the Adaptation of Laws (No. 2) Order, 1956, for 'Part C States'.]

(Laws) Act, 1950.

(2)

It shall come into force on the 16th day of April, 1950.

2.

Power to extend enactments to certain Union territories.

- The Central Government may, by notification in the Official Gazette, extend to [the Union territory of Delhi, Himachal Pradesh, Manipur or Tripura or to any part of such territory]

[Substituted by the Adaptation of Laws (No. 2) Order, 1956, for certain words.]

, with such restrictions and modifications as it thinks fit, any enactment which is in force in a [State]

[Substituted, by the Adaptation of Laws (No. 2) Order, 1956, for 'Part A State'.]

at the date of the notification, [* * *]

[Certain words, brackets and letters, omitted by Act 48 of 1952, s. 3 and the Second Schedule.]

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3.

Extension of laws to Tripura, Vindhya Pradesh and Manipur.

(1)

The Acts and Ordinances specified in the Schedule to the Merged States (Laws) Act, 1949 (59 of 1949), are hereby extended to, and shall be in force in, the States of Tripura and Vindhya Pradesh, as they are generally in force in the territories to which they extend immediately before the commencement of this Act.

(2)

[Subject to the provisions contained in sub-section (2A), the Acts and ordinances referred to in sub-section (1)]

[Substituted by Act 68 of 1956, s. 2, for certain words (w.e.f. 1-1-1957).]

, are hereby extended to, and shall be in force in, the State of Manipur as they are generally in force in the territories to which they extend immediately before the commencement of this Act:

Provided that the Indian Penal Code (45 of 1860) in its application to the State of Manipur shall have effect as if -

(a)

in section 361, for the word "eighteen" the word "fifteen" had been substituted, and

(b)

in section 375, for the word "sixteen" in clause Fifthly the word "fourteen" had been substituted, and for the word "fifteen" in the Exception the word "thirteen" had been substituted.

(2A)

[The Acts specified in Part A of the Schedule to this Act shall not extend to the State of Manipur, and the Acts specified in Part B thereof shall extend to, and be in force in that State only as from the date of commencement of the Union Territories (Laws) Amendment Act, 1956 (68 of 1956), and shall with effect from that date, be amended to the manner and to the extent specified in the said Part.]

[Inserted by s. 2, Act 68 of 1956, (w.e.f. 1-1-1957).]

(3)

For the purpose of facilities the application in the said States of any such Act or Ordinance as aforeaid any Court or other authority may construe the Act or Ordinance with such alterations not affecting the substance as may be necessary or proper to adapt it to the matter before the Court or other authority.

[Explanation. - For the purposes of this section and section 4, any reference to the State of Manipur or Tripura in relation to any period after the 31st October, 1956, shall be construed as a reference to the Union territory of Manipur or Tripura as the case may be].

[Inserted by s. 2, Act 68 of 1956, (w.e.f. 1-1-1957).]

Manipur.- In its application to the Union territory of Manipur (now a State), omit proviso to section 3(2) - [Mainipur Act 8 of 1966, S.2 (2.1.1967).]

4.

Repeals and Savings.

- Section 7 of the Delhi Laws Act, 1912 (13 of 1912), the Ajmer Merwara (Extension of Laws) Act, 1947 (52 of 1947), and any law which immediately [before the coming into force of any Act or Ordinance extended by this Act to any of the States of Manipur, Tripura and Vindhya Pradesh is in force in that State and corresponds to the Act or Ordinance as so extended]

[Substituted by s. 3, Act 68 of 1956, for certain words (w.e.f. 1-1-1957).]

, are hereby repealed:

Provided that the repeal shall not affect -

(a)

the previous operations of any such law, or

(b)

any penalty, forfeiture or punishment incurred in respect of any offence committed against any such law; or

(c)

any investigation, legal proceeding or remedy in respect of any such penalty, forfeiture or punishment, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed:

Provided further that, subject to the preceding proviso, anything done or any action taken, including any appointment or delegation made, notification, order, instruction or direction issued, rule, regulation, form, bye-law or scheme framed, certificate, patent, permit or licence granted or registration effected, under such law shall be deemed to have been done or taken under section 2 or, as the case may be, under the corresponding provision of the Act or Ordinance [as extended]

[Substituted by Act 68 of 1956, s. 3, for 'as now extended' (w.e.f. 1-1-1957).]

to the State by section 3, and shall continue in force accordingly, unless and until superseded by anything done or any action taken under the said section 2 or, as the case may be, under the said Act or Ordinance.

[The Schedule]

[Substituted by Act 68 of 1956, s. 4, for the original Schedule.]

[See section 3 (2A)]

Part A ? Acts not extended to Manipur by this Act

Year

Number

Short Title

1

2

3

1866

XXI

The Converts' Marriage Dissolution Act, 1866

1872

XV

The Indian Christian Marriage Act, 1872

[2 *

[Entry relating to the Married Women's Property Act, 1874 (3 of 1874) omitted by Act

61 of 1959

, s. 4 (w.e.f. 1-3-1960).]

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* * * *]

1879

XVIII

The Legal Practitioners Act, 1879

Part B ? Acts extended to Manipur by this Act as from the commencement of the Union Territories' (Laws) Amendment Act, 1956.

Year

Number

Short Title

Amendment (if any)

1

2

3

4

1873

X

The Indian Oaths Act, 1873

In section 1, for the second paragraph, the following paragraph shall be substituted, namely: -"It extends to the whole of India except the State of Jammu and Kashmir."

1882

IV

The Transfer of Property Act, 1882.

1887

VII

The Suits Valuation Act, 1887.

1898

V

The Code of Criminal Procedure, 1898.

(1) In section 1, in sub-section (2), the words "and the Union territory of Manipur" shall be omitted, and (2) in section 93A, in sub-section (1), the words "or in the Union territory of Manipur" shall be omitted.

1908

V

The Code of Civil Procedure, 1908.

In section 1, in sub-section (3) the word "and"
at the end of clauses (c) and clause (d) shall be omitted.

1925

XXXIX

The Indian Succession Act, 1925.

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